

STATE OF NEW YORK

4674--A

2025-2026 Regular Sessions

IN SENATE

February 11, 2025

Introduced by Sen. JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Insurance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the insurance law, in relation to allowing domestic insurers to make certain records available by electronic means

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subsection (a) of section 325 of the insurance law, as
2 amended by chapter 196 of the laws of 1987, is amended to read as
3 follows:

4 (a) Every domestic insurer and every licensed United States branch of
5 an alien insurer entered through this state shall, except as hereinafter
6 provided, keep and maintain at its principal office in this state its
7 charter and by-laws (in the case of a United States branch a copy there-
8 of) and its books of account, and if a domestic stock corporation a
9 record containing the names and addresses of its shareholders, the
10 number and class of shares held by each and the dates when they respec-
11 tively became the owners of record thereof, and if a domestic corpo-
12 ration the minutes of any meetings of its shareholders, policyholders,
13 board of directors and committees thereof. If any such records are kept
14 in a language other than English, they shall be accompanied by accurate
15 translations thereof. An insurer may satisfy the requirements of this
16 subsection by storing the aforementioned books and records on servers
17 that are accessible through the internet, on an internal server hosted
18 by the insurer or one of its affiliates, or externally with a third-par-
19 ty service provider if they are easily accessible from the insurer's
20 principal office in this state and the insurer complies with all appli-
21 cable state and federal laws and regulations.

22 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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